

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DARRYL WALKER,

Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER CARLOS GOMEZ (shield # 14914)
and LT. ERIC DYM (shield # unknown),

Defendants.
-----X

Index No.

Purchased 3-4-21

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
March 4, 2021



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:
CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
DARRYL WALKER

Plaintiff,

Index No.
Verified Complaint

- against -

THE CITY OF NEW YORK,
POLICE OFFICER CARLOS GOMEZ (shield # 14914)
and LT. ERIC DYM (shield # unknown),

Defendants.
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Plaintiff DARRYL WALKER, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff DARRYL WALKER was a resident of Bronx County, State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("NYPD") was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendant POLICE OFFICER CARLOS GOMEZ (shield # 14914)("P.O. GOMEZ") was and is a police officer employed by the Defendants.
5. At all times hereinafter mentioned, Defendant LT. ERIC DYM (shield # unknown)

(“LT. DYM”) was and is a police officer employed by the Defendants.

BACKGROUND

6. On May 26, 2020, at approximately 9:00 p.m., in the vicinity of 818 Home Street in Bronx County, without just cause or provocation, Defendants, including P.O. GOMEZ, LT. DYM, approached Plaintiff and demanded that Plaintiff “back up”. In response, Plaintiff walked backwards.

7. As Plaintiff continued to walk backwards, the Defendants continued to approach Plaintiff and repeatedly demanded that Plaintiff keep “backing up”. Again, Plaintiff complied.

8. Shortly thereafter, without just cause or provocation, a police officer pointed pepper-spray (“OC”) in Plaintiff’s direction and sprayed Plaintiff in Plaintiff’s face.

9. Immediately thereafter, LT. DYM repeatedly punched Plaintiff in Plaintiff’s face, head and neck. LT. DYM also deliberately stomped on Plaintiff’s feet.

10. The police arrested Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Obstructing Governmental Administration in the Second Degree and the violation of Disorderly Conduct.

11. Next, Plaintiff was taken to a police precinct in Bronx County. At the precinct, members of the NYPD continued to assault and batter Plaintiff by kicking Plaintiff’s testicles and repeatedly kneeling Plaintiff in Plaintiff’s back.

12. As a result of the conduct of the Defendants, Plaintiff was taken to a local Bronx hospital to receive treatment for his injuries.

13. After being treated at the hospital, Plaintiff was taken to Bronx County Central Booking.

14. On or about May 28, 2020, Plaintiff was arraigned in Criminal Court and released on his own recognizance.

15. Plaintiff had to defend against false charges until all charges were dismissed and sealed on December 14, 2020.

PROCEDURAL POSTURE

16. On June 24, 2020, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendants of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable. Plaintiff served an Amended Notice of Claim on December 21, 2020.

17. More than thirty days have elapsed since service of said notice, and Defendant CITY has failed to pay or adjust this claim.

18. This action has been commenced within one year and ninety days after the cause of action accrued.

19. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

20. Paragraphs 1-19 are incorporated by reference as fully set forth herein.

21. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 6-14, and Plaintiff did not consent to that arrest or confinement.

22. The Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right. The Defendants lacked probable cause to arrest Plaintiff.

23. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple

injuries, including loss of liberty, emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: ASSAULT

24. Paragraphs 1-23 are incorporated by reference as though fully set forth herein.

25. P.O. GOMEZ, LT. DYM and other officers with the NYPD, acting as the agents, servants and employees of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact by aggressively approaching Plaintiff, spraying Plaintiff with pepper-spray, punching Plaintiff in his head and neck, stomping on Plaintiff's feet, kicking Plaintiff in his testicles and kneeling Plaintiff in his back.

26. As a result of being assaulted by the Defendants, including P.O. GOMEZ and LT. DYM, Plaintiff sustained multiple physical injuries, including substantial pain to his eyes, jaw, back and feet. Plaintiff also sustained emotional distress, loss of liberty, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: BATTERY

27. Paragraphs 1-26 are incorporated by reference as though fully set forth herein.

28. When the Defendants, including P.O. GOMEZ and LT. DYM, sprayed Plaintiff with pepper-spray, punched Plaintiff in his head and neck, stomped on Plaintiff's feet, kicked Plaintiff in his testicles and kneed Plaintiff in his back, they subjected Plaintiff to a harmful or offensive bodily contact. The Defendants, including P.O. GOMEZ and LT. DYM, intended to make that contact without Plaintiff's consent.

29. As a result of being battered by the Defendants, Plaintiff sustained multiple

physical injuries, including substantial pain to his eyes, jaw, back and feet. Plaintiff also sustained emotional distress, loss of liberty, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

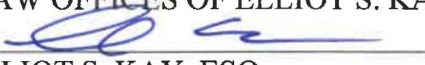
30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.
31. In arresting Plaintiff, the Defendants acted with malice.
32. The Defendants lacked probable cause to arrest Plaintiff.
33. Defendant P.O. GOMEZ signed a Criminal Complaint against Plaintiff that contained inaccurate, misleading and incomplete information.
34. The matter was terminated in Plaintiff's favor when all charges pending against Plaintiff were dismissed and sealed on December 4, 2020.
35. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
March 4, 2021

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY


BY: ELLIOT S. KAY, ESQ.
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
212-939-7251

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Plaintiff

-against-

THE CITY OF NEW YORK,
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Defendants

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VERIFICATION

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
March 4, 2021



ELLIOT S. KAY